

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NIELSEN & BAINBRIDGE, LLC, *Complainant*

v.

OCEAN NETWORK EXPRESS PTE. LTD., *Respondent*.

DOCKET NO. 25-30

Served: January 26, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

SCHEDULING ORDER

On January 23, 2026, Complainant Nielsen & Bainbridge, LLC (“NBG”) and Respondent Ocean Network Express PTE. Ltd (“ONE”) filed their first Joint Status Report (“JSR 1”) and proposed a discovery schedule that closes within the 150 days set by 46 C.F.R. § 502.141(g). Although the parties state that the volume of records they must search is extensive and it is unlikely they will be able to complete discovery in the five months after Respondent’s filing of the answer set by the Commission’s Rules, they are encouraged to continue to narrow the issues, and to stipulate to facts that are not in contention. The parties are instructed to familiarize themselves with the Initial Order and the Commission’s rules prior to filing motions and for briefing. In particular, the section of the Initial Order that sets forth how to introduce and mark confidential material must be reviewed and applied. Discovery issues, if any, should be brought to the attention of the undersigned by emailing a request for a status conference to judges@fmc.gov, prior to filing discovery motions.

The proposed discovery schedule is reasonable and is adopted; the proposed start of briefing two months after discovery closes is excessive and is not adopted. Accordingly, it is **ORDERED** that the parties follow this schedule, which includes briefing starting four weeks after the close of discovery:

February 9, 2026	Parties serve initial requests for production of documents, ESI, and interrogatories
March 11, 2026	Parties serve objections to initial requests for production of documents, ESI, and interrogatories
April 10, 2026	Parties submit any unresolved disputes regarding initial requests for production, ESI, and interrogatories
April 10, 2026	Substantial completion of production of documents and ESI pursuant to initial requests

April 17, 2026	Parties file Joint Status Report 2 regarding status of discovery
May 11, 2026	Complete depositions of fact witnesses
May 11, 2026	Last day to serve interrogatories, requests for admission, and requests for production of documents
May 21, 2026	Disclosure of initial expert reports, if any
June 1, 2026	Disclosure of rebuttal expert reports, if any
June 12, 2026	Complete expert depositions
June 12, 2026	Close of discovery
July 9, 2026	Complainant's Brief, proposed findings of fact, appendix due
August 6, 2026	Respondent's Opposition brief, proposed findings of fact, response to Complainant's proposed findings of fact, appendix due
August 20, 2026	Complaint's Reply Brief, response to Respondent's proposed findings of fact due

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Motions will not automatically stay other deadlines in the proceeding. If a motion could impact other deadlines, that should be clearly addressed in the motion and any response. All requests for extension of time will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of the parties to proceed expeditiously.

Any filing submitted without page numbers, including on exhibits, may be rejected. Parties must also follow the instructions in the Initial Order, including the requirements for submitting confidential information. All filings “must be filed with the Secretary, Federal Maritime Commission.” 46 CFR 502.2(a). This filing requirement applies to both the confidential and public versions of filings. The Commission has waived paper filing

requirements and permitted filings by email. Therefore, filings of confidential versions of documents, as well as the public version, should be sent by email to secretary@fmc.gov with a courtesy copy to judges@fmc.gov. Confidential filings should be clearly marked on the subject line, in the email, and on the document itself. Parties may be required to refile any documents that do not follow the requirements above or in the Initial Order.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word-processing versions should not be submitted to the Office of the Secretary.



Linda S. Harris Crovella
Administrative Law Judge